

HOUSE No. 3516

The Commonwealth of Massachusetts

PRESENTED BY:

Michael P. Kushmerek, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to prevent predatory towing fees for police-authorized tows.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Emilio Nazario III</i>	<i>Fitchburg MA 01420</i>	<i>1/17/2025</i>

HOUSE No. 3516

By Representative Kushmerek of Fitchburg (by request), a petition (accompanied by bill, House, No. 3516) of Emilio Nazario III that the Department of Utilities establish a list of approved charges for towing and storage services provided by towing companies contracted by state or local police departments. Telecommunications, Utilities and Energy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to prevent predatory towing fees for police-authorized tows.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1:

2 Establishment of Approved Towing and Storage Fees

3 1. The Department of Utilities shall establish a list of approved charges for towing and
4 storage services provided by towing companies contracted by state or local police departments.

5 2. The list of approved charges shall include, but not be limited to, the following:

6 a. Maximum fees for towing services, based on vehicle size and weight.

7 b. Maximum fees for storage services, based on the length of time the vehicle is stored.

8 c. Maximum fees for additional services, such as winching, dolly fees, or special
9 equipment

fees.

3. The list of approved charges shall be reviewed and updated by the Department of Utilities at least once every two years to ensure that it remains reflective of current market conditions.

4. The Department of Utilities shall make the list of approved charges publicly available on its website and provide copies to all towing companies contracted by state or local police departments.

SECTION 2:

Compliance and Enforcement

1. All towing companies contracted by state or local police departments shall adhere to the list of approved charges established pursuant to Section 1 of this Act when invoicing vehicle owners for towing and storage services.

2. Any towing company found to be in violation of this Act shall be subject to a penalty for each offense.

3. The Department of Utilities shall have the authority to investigate complaints of violations of this Act and may inspect the records of any towing company contracted by state or local police departments to ensure compliance.

4. The Department of Utilities shall have the authority to suspend or revoke the contract of any towing company found to be in repeated or willful violation of this Act.

29 5. The Department of Utilities shall promulgate regulations to implement the provisions
30 of this Act.

31 6. Nothing in this Act shall be construed to limit or restrict the authority of any law
32 enforcement agency to tow or impound vehicles pursuant to existing law. Typically, the effective
33 date of a legislative bill is determined based on various factors, such as the complexity of the
34 implementation process, the need for regulatory rule-making or other administrative actions, and
35 the need for public awareness or education.

36 The bill takes effect 90 or 120 days after passage, to allow for administrative
37 implementation.